ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	147th Commission Meeting
DATE:	19th October, 2023
TIME:	09:30 AM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Present proposal on enhancement of ACRS and other functions of DoPS – PPD & DoPS *Presented the proposal to enhance the functions of ACRS in keeping with non-responsive and inconsistent actions by the agencies concerned on the referrals related to administrative complaints, as well as grievances of complainant/individual concerned and its impact on public's trust on the ACC. The resolutions of the Parliament related to handling the administrative nature of complaints as well as the amendments in the ACAB 2011 were taken into consideration.* *The proposal included revamping the approach of managing complaints of administrative nature as against the current practice of sharing with the relevant agencies for reviewing and taking necessary action.* *Copy of presentation attached.*	**In principle, the Commission endorsed the proposal and decided to discontinue sharing of complaints of administrative nature with agencies concerned. Hereafter, such complaints upon receipt was decided to be handled by the ACRS, by initiating administrative inquiry/investigation, recommending sanctions/necessary actions, directing the agencies concerned to take actions within 30 working days, among others.** **In implementing this proposal, the Commission directed the following:** • **Upgrade the ACRS to a Division by creating two units, i.e, for Information Enrichment (IE) and administration complaints resolution. However, DoPS to manage the number of staff based on the existing strength in CMD and ACRS.** • **DoPS, LD, & PPD to bring greater clarity on the revamped functions of the ACRD by drafting relevant rules/SOP/criteria. Specifically, the Commission directed to also bring clarity to effectively manage:** - **complaints shared for sensitization,** - **complaints shared with agencies such as RAA & NLCS,** - **engagement of Regional Offices, among others.** • **PPD to accordingly revise the existing MoU with the RAA and RCSC, and also study the need to have similar MoU with RBP;** • **DoPS to ensure that such revamping should accordingly be adapted in the on-going CIMS enhancement.**

		On the other proposals related to the DoPS functions, the Commission directed the following: • **With regards to confusion related to post investigation systemic recommendations and administrative actions, it was clarified that PD of DoPE is required to coordinate and follow-up on all the post investigation systemic corrections, while, CFD of DoPS shall follow-up and enforce post investigation administrative sanctions/ recoveries, including the imposition of fines and penalties. To this, DoI was directed to involve PD during case presentation to the Commission, whenever there is systemic recommendation proposed.** • **Directed to form a Task Force to comprehensively compile and reconcile the data related to restitution, involving CFD, EMD, LD, DoI, and PPD;** • **HRC to discuss on the requirement of an experienced Legal Officer in the CFD in keeping with the mandate of the division;** • **DoI to include a case summary (fact sheet) in the investigation report while they hand-over the file to EMD, for easy reference.**
2	Discuss issuance of IVR for few NA candidates – DoPS	**The Commission decided to furnish the integrity vetting certificate as "no record" but with a disclosure that two cases have been referred to OAG for prosecution and one being under investigation. This is as per two types of record issued for election purpose.** **The Commission reminded CFD to be extra cautious in undertake vetting.**
3	Apprise regular HR updates – HRS *The HRO apprised the Commission on three HRC meetings, specifically, 116, 117 and 118 HRC meetings.* *The appraisals included expression of interests for the inter departmental transfers, further studies, and specialization through specialist positions; proposal for recruitments; resignation and relieving dates; lessons from the moderation exercise; and follow-up actions on the 12th QSM.*	**The Commission noted the decisions of the HRC. In addition, the Commission advised the following:** • **Directed the HRC to expedite and facilitate the change of two Chief's position category/structure to Specialists and similarly Act Director of DoPE's position to EX.** • **Directed HRC to review and discuss the action on two candidates appearing Bar Exam without prior intimation to the HRC, despite repeated reminder from the HRS. The Commission directed that this is serious breach of Ethical Code of Conduct and it has to be dealt severely. While the HRC had known the issue, the wisdom of the HRC to**

		withhold the actions until completion of the exam was appreciated. • **The Commission noted the lessons of the first ever moderation exercise conducted in the ACC and the HRC's recommendation to have distinction between appeal & endorsement authority; review & change the practice of pre-moderating the four independent divisions from the next exercise; and enhancing transparency in the overall exercise. Further, directed HRS to institute leadership feedback for P3 & below heads of the four divisions, to have comprehensive assessment.** • **Specifically on the Performance Improvement Plan (PIP) for those categorized in the PME, the Commission also directed to help identify and build capacities through trainings.**
4	Present proposal on installation of wired fence– P/ling RO *The RD and SS Head presented proposal for installation of barbed wire as against the initial plan of concertina wire for fencing of the office building in Phuentsholing. The proposal was in keeping with the higher costs, relatively higher maintenance costs and poor aesthetics of the concertina fence.*	**The Commission decided to install barbed wire as proposed. However, directed RD, Jangchuk Tshomo of DoI and Head, SS to customize and accordingly revise the design and estimates to ensure complete wiring of the overall campus including the front and back gates.** **Further directed RD and SS to use any excess budget to install shutter in the basement entrance.**
5	Apprise proposal related to documentation room & general store - SS *The Head of SS apprised proposal to convert the general store in the ground floor to documentation room.*	**The Commission endorsed the option to undertake the restructuring of the documentation room by awarding the lump sum contract of Nu. 2,16,300.00 to third party contractor. Directed SS to explore avenues for proper ventilation in the basement.** **Thereafter, the Commission directed all the documents in Choesham and 2nd floor, and DARe's (if required) to be shifted to the new documentation room in the basement.**
6	Any other: • *Discuss nomination for the 'coordination meeting for 4th NA Elections' - PPD*	**Nominated Dasho A Karma Rinzin, Commissioner to represent the ACC to the important meeting, organized by the ECB on 26 October, 2023.**
	• *Apprise invitation for 10th Session of the Conference of the States Parties (CoSP) to the UNCAC – PPD*	**The Commission decided to attend the 10th CoSP from 11-15 December, 2023. Further, maximizing the presence in Atlanta as well as given the importance of topics of other three pre-sessions held from 9 – 10 December, 2023, the Commission decided to attend the same.**

		The pre-sessions include: - **4th Anti-Corruption Academic Symposium on 9 – 10 December, 2023 covering approaches to collecting data and statistics about corruption; risk and opportunities of artificial intelligence and emerging technologies; nexus between organized crimes and corruption; and how to involve non-traditional partners in the fight against corruption, among others;** - **Young Change maker's event on 10 December, 2023 (9 – 11 AM); and** - **Anti-Corruption CSO Forum on 10 December, 2023 (11:45 – 5:00 PM) covering the role of CSO** **To this, the Commission nominated Dasho Jamtsho, Commissioner, as the focal for the UNCAC, to represent the Dasho Chairperson. Dasho Jamtsho's participation was decided to be funded by the ACC.** **Further, directed HRC to nominate relevant official/s for the conference and meetings, primary one under UNODC funding and additional one, based on availability of budget.**

Commissioner **Commissioner** **Chairperson**

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